

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                     |                           |                                                                                                                                                                                                            |
|---------------------------------------------------|-------------------------------------|---------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Simon Wang                       | Team:<br>Squad #02                  | CCRB Case #:<br>201412776 | <input type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 12/17/2014 3:30 AM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>6/17/2016   | Precinct:<br>109                                                                                                                                                                                           |
| Date/Time CV Reported<br>Mon, 12/29/2014 12:01 PM | CV Reported At:<br>IAB              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 12/30/2014 12:01 PM                                                                                                                                                     |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. POF Tabitha Sarni | 23431  | 951215 | 109 PCT |

| Witness Officer(s)  | Shield No | Tax No | Cmd Name |
|---------------------|-----------|--------|----------|
| 1. POF Joan Miller  | 10746     | 918387 | 109 PCT  |
| 2. POM Shawn Faller | 07349     | 938456 | 109 PCT  |

| Officer(s)            | Allegation                                               | Investigator Recommendation |
|-----------------------|----------------------------------------------------------|-----------------------------|
| A . POF Tabitha Sarni | Discourtesy: PO Tabitha Sarni spoke rudely to § 87(2)(b) | A . Unsubstantiated         |

## Case Summary

On December 17, 2014, at approximately 3:12 a.m., Eduardo Castillo called 911 and reported that his wife § 87(2)(b) was intoxicated and threatened him with a knife at § 87(2)(b) in Queens. Amongst other officers, PO Shawn Faller, PO Tabitha Sarni and PO Joan Miller, of the 109 Precinct responded to the incident. PO Faller arrested § 87(2)(b) for menacing with a weapon. § 87(2)(b) alleged that after she was escorted outside of her home, PO Sarni told her, “Shut up you dumb bitch.” (**Allegation A**)

## Mediation, Civil and Criminal Histories

§ 87(2)(b) chose not to mediate this complaint. A freedom of information law request to the New York City Comptroller’s office for notice of claim filed by § 87(2)(b) was submitted on March 6, 2015, and the results will be added to the case upon the receipt of the results (encl.6i). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

## Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2b).
- This is the first CCRB complaint against PO Sarni during her three year tenure (encl. 2a).

## Finding and Recommendations

### Allegations Not Pleaded

- § 87(2)(g)

### Explanation of Subject Officer Identification

§ 87(2)(b) identified PO Sarni by looking at her nameplate.

### Recommendations

#### Allegation A – PO Tabitha Sarni spoke rudely to § 87(2)(b)

§ 87(2)(b) was handcuffed inside her home and then escorted by PO Sarni and PO Miller to their patrol car for transport to the 109 Precinct stationhouse. While outside her house, § 87(2)(b) protested her arrest to the officers. § 87(2)(b) alleged that PO Sarni responded by telling her, “Shut up you dumb bitch.” § 87(2)(b) also claimed that PO Miller then reprimanded PO Sarni for her language.

PO Sarni and PO Miller both denied that PO Sarni called § 87(2)(b) a “bitch.” PO Miller denied having any objection to PO Sarni’s language towards § 87(2)(b). PO Faller denied witnessing this portion of the incident and denied hearing PO Sarni use any discourteous language. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Pod: 2

Investigator: \_\_\_\_\_ Simon Wang \_\_\_\_\_ 03/26/15  
Signature Print Date

Supervisor: \_\_\_\_\_  
 Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
 Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
 Title/Signature                      Print                      Date